

Moot court IHL / Refugee Law / ICC - notatki Ctrl+F

Plik przygotowany pod szybkie szukanie podczas moot court po angielsku. Najlepiej używać Ctrl+F po tagach w nawiasach, np. [IAC], [NIAC], [REFUGEE], [ICC], [DRONE], [CYBER], [OCCUPATION], [CULTURAL PROPERTY], [MEDICAL], [NON-REFOULEMENT].

0. Źródła użyte do przygotowania [SOURCES]

1. Marcin Marcinko, Piotr Lubinski, _Wybrane zagadnienia z zakresu międzynarodowego prawa humanitarnego_, Kraków 2009 - przesłany PDF. Najważniejsze wątki z PDF: definicja MPH; prawo genewskie/prawo haskie; źródła; zasady humanitaryzmu, rozróżniania, proporcjonalności i konieczności wojskowej; status kombatanta i jeńców; ranni/chorzy/rozbitkowie; ludność cywilna; obrona cywilna; metody i środki walki; obiekty cywilne; dobra kultury; NIAC; terroryzm; sady międzynarodowe; ICRC/MKCK.
2. All-European International Humanitarian and Refugee Law Moot Court Competition, University of Ljubljana - oficjalne informacje: konkurs od 2016 r.; organizator Faculty of Law, University of Ljubljana; partnerzy ICRC, UNHCR, Slovenian Red Cross; preliminary/quarter-final rounds jako symulacje spotkań stron konfliktu i organizacji międzynarodowych; semi-final/final jako symulacja postępowania przed ICC.
3. Case Study 2025: _The Situation in the Former Cygnus Region_ - 10th Edition, Ljubljana, 18-21 Nov 2025.
4. Case Study 2024: _The Situation in the Draco Archipelago_ - 9th Edition, Ljubljana, 19-22 Nov 2024.
5. Dodatkowo sprawdzone jako wzorzec trendu: Case Study 2023: _The Situation in the Aesophia Region_ - 8th Edition, Ljubljana, 21-24 Nov 2023.

Krotki wniosek z tematów Ljubljana [MOOT PATTERN]: kazusy są budowane na aktualnych kryzysach i zwykle łączą: secesje/mniejszości, surowce strategiczne, grupy zbrojne, interwencje państw trzecich, AI/drony/cyber, ochronę cywilów, detencje, pomoc humanitarna, uchodźców/pushbacks/non-refoulement oraz finalnie odpowiedzialność przed ICC.

1. Jak korzystać w rundzie ustnej [ORAL METHOD]

1.1. Szybki schemat odpowiedzi [IRAC]

I - Issue: identify the legal issue: classification, applicable law, protected status, conduct, responsibility/remedy.

R - Rule: cite treaty/custom/case: e.g. Common Article 2, Common Article 3, AP I art. 48/51/52/57, Refugee Convention art. 33, Rome Statute art. 8.

A - Application: apply facts: who, where, when, control, intensity, organization, target, expected military advantage, civilian harm, risk on return.

C - Conclusion: one sentence: lawful/unlawful, IAC/NIAC, refugee protection owed, war crime arguably established/not established.

English sentence starters [PLEADING PHRASES]:

- "The applicable legal framework is..."
- "The threshold question is whether the situation amounts to..."
- "On the facts, the violence reaches the required level of intensity because..."
- "The group is sufficiently organized because..."
- "Even assuming a legitimate military objective, the attack fails the proportionality test because..."
- "The State cannot rely on national security to avoid the absolute principle of non-refoulement where there is a real risk of..."

- "The Defence would submit that the accused lacked the required mens rea / that the expected military advantage was concrete and direct."
- "The Prosecution would submit that the pattern of conduct shows intent/knowledge."

1.2. Kolejność analizy w sprawie [CHECKLIST]

1. Jurisdiction / forum [JURISDICTION]: ICC? domestic? meeting with ICRC/UNHCR? all States party to Rome Statute?
2. Classification [CLASSIFICATION]: IAC, NIAC, occupation, mixed conflict, internationalized NIAC?
3. Applicable law [APPLICABLE LAW]: UN Charter for use of force; IHL for conduct of hostilities/detention/occupation; refugee law/human rights for asylum and returns; ICL for crimes.
4. Status of persons [STATUS]: combatant, POW, civilian, DPH, wounded/sick, medical personnel, refugee/asylum seeker, child.
5. Conduct [CONDUCT]: attack, detention, starvation, humanitarian access, cultural property, medical objects, weapons, cyber, displacement.
6. Responsibility [RESPONSIBILITY]: State responsibility, attribution, individual criminal responsibility, command responsibility.
7. Remedy / requested action [REMEDY]: cease, allow humanitarian access, release/repatriate, investigate/prosecute, no return, grant asylum procedure.

2. Tematy moot court: rok temu i dwa lata temu [LJUBLJANA TOPICS]

2.1. 2025 - Case Study: The Situation in the Former Cygnus Region [CYGNUS 2025]

Panstwa i aktorzy [2025 ACTORS]:

- Ara - democratic parliamentary republic; President Arisa Kastenja; professional armed forces; ethnic Aranians 75%, ethnic Rutanians 20%.
- Rutania - weak parliamentary democracy dominated by oligarchy; PM Rutman Drax; supports Rutanian minority and RPK/RPKAW.
- Kolechia - region in Ara, majority ethnic Rutanians; separatist claim; self-proclaimed Republic of Kolechia not recognized.
- RPK / RPKAW - Rutanian Party of Kolechia and armed wing; Zimon Wens; Matilda Volda; alleged Rutanian sponsorship, weapons, training.
- Icaria - neutral island State; strict visa policy; receives/assesses asylum seekers; later intercepts boats and returns Rutanians.
- Obristan - ally of Rutania under Treaty of Friendship, Trade and Defence, collective self-defence clause.

Key facts [2025 FACTS]:

- 18 Mar 2025: Ara adopts decree closing small primary schools; more than 50% of Kolechian schools affected.
- 20 Mar 2025: mass protest in Nirsk; clashes; 15 protestors killed, including with "less lethal" rubber bullets.
- 23 Apr 2025: RPKAW captures police stations and administrative buildings; battle for Nirsk railway station.
- 24 Apr 2025: Ara declares emergency and sends armed forces; 26 Apr Ara bombs airport, radio towers, power plant.
- 28 Apr 2025: Kolechia declares independence; RPK sole party; RPKAW mobilization; Rutania volunteers join.
- Spring/summer 2025: static frontline; Ara uses cluster munitions; 5,300 Kolechian civilians killed; captives on both sides; Aranian soldiers paraded in Nirsk.
- Rutania conducts propaganda/cyber operations; possible malicious code in Centurion hydroelectric plant.
- 15 Jul 2025: Ara invades Rutanian Transaltania region, saying response to hybrid war and supply flow.
- Rutania launches missile salvos at Centurion; old inaccurate rockets with 500m accuracy; 612 civilians killed, no military targets hit.

- 28 Jul 2025: Ara captures Daliaq; 5 Aug ceasefire brokered by Icaria.
- Ara keeps Transaltania as "buffer zone", denies humanitarian organizations, considers extracting lithium/cobalt; artifacts removed from pagan temples; civilians disappear; food/medicine shortage.
- Kolechians trapped; humanitarian access denied; starvation and bad camps.
- Icaria: reception plan for Transaltania asylum seekers; vouchers; reporting duties; arrests for pro-Rutania banners; naval interception and return of Kolechian Rutanians to Ara/Kolechia as terrorism suspects.
- 20 Aug 2025: ICC Pre-Trial Chamber authorizes investigation into former Cygnus region since 18 Mar 2025; all States party to Rome Statute and relevant treaties.

Probable legal issues [2025 ISSUES]:

- [NIAC] Ara v RPKAW: intensity + organization; Common Article 3; AP II if RPKAW responsible command + territorial control + sustained operations + capacity to implement AP II.
- [INTERNATIONALIZATION] Rutania support to RPKAW: attribution/overall control/effective control; does NIAC become IAC between Ara and Rutania or remain parallel conflicts?
- [IAC] Ara v Rutania from 15 Jul 2025 at latest: Common Article 2; AP I; occupation of Transaltania if effective control.
- [JUS AD BELLUM] Ara's invasion of Transaltania: self-defence against cyber/hybrid/proxy support? attribution? necessity and proportionality under UN Charter art. 51.
- [MISSILES] Rutania's missile attacks on Centurion: distinction, indiscriminate attacks, proportionality; use of inaccurate weapons in populated areas.
- [CLUSTER MUNITIONS] Ara's use in Kolechian villages: treaty/custom, indiscriminate effects, unexploded ordnance, civilian harm.
- [POW / DETENTION] captured RPKAW fighters vs captured Aranian/Rutanian soldiers; parading captured soldiers = outrages upon personal dignity.
- [HUMANITARIAN ACCESS] denial of humanitarian organizations in Transaltania/Kolechia; starvation; medicine shortage.
- [OCCUPATION] Transaltania: duty to maintain public order, food/medical supplies, ICRC access, no pillage, no unlawful deportation/disappearance.
- [CULTURAL PROPERTY] removal of pagan artifacts from Daliaq temples; Hague 1954 + AP I art. 53 + Rome Statute.
- [REFUGEE] Icaria's pushbacks/interceptions, non-refoulement, access to procedure, detention/reporting, adequate reception conditions, security exception/exclusion for terrorism suspects.
- [ICC] war crimes: intentionally directing attacks against civilians/civilian objects, indiscriminate/proportionate attacks, starvation, pillage, cultural property, unlawful detention, cruel treatment, outrages, enforced disappearance if contextual elements met, command responsibility.

2.2. 2024 - Case Study: The Situation in the Draco Archipelago [DRACO 2024]

Panstwa i aktorzy [2024 ACTORS]:

- Antlia - Republic; PM Margaret Walker; Taurus region with Rho minority and strategic minerals.
- Rho - Kingdom; Queen Dua; nuclear power plant; armed forces under General Adam Shi.
- Carina - regional superpower; former colonial power; depends on minerals; military under General James Howard; permanent UNSC member.
- Orion - AI/high-tech State; Star-Hawk develops AI-guided loitering munitions/AS-101 drones/ES-90 missiles.
- Wolves of Rho - armed non-state group; leader Jack "the Wolf"; cross-border attacks; alleged Carina links.

Key facts [2024 FACTS]:

- Antlia stops mining in Taurus due to collapse risk to 10 villages, mostly Rho ethnicity.
- Carina invokes Antlia-Carina Association Agreement requiring mineral supply.
- Wolves of Rho attack Antlian civilians and border guards, take hostages, capture outpost.
- 25 Dec 2023: Antlia uses AS-101 AI drones; drones kill 28 Antlian hostages disguised/equipped by Wolves as fighters.

- Antlia crosses into Western Rho; further AI drone use despite known failure; thousands of predominantly civilian casualties; hospitals/schools/UNICEF facilities affected.
- Rho claims self-defence; Carina provides military assistance to Rho.
- General Howard orders "fire at will" and "take no prisoners"; pardons soldiers accused of firing at wounded, medical staff, prisoners.
- Massive displacement by boat to Orion/Carina; Special Containment Agreement: legal fiction of non-entry, detention on Stella Island, eligibility by Carina, return to Rho; 25,400 drown on unsafe returns; asylum denied to "illegal immigrants" in Carina; work/housing/social support denied; "voluntary" return bonus.
- Antlia controls most of Western Rho, including nuclear power plant; uses plant for howitzers; holds scientists/employees hostage; refuses food/water/electricity.
- Antlia forces 50 captured Rho soldiers into reactor to inspect meltdown; only 3 survive.
- Rho Special Forces infect plant system with virus to destabilize nuclear core.
- Rho considers nuclear attack on Polaris; Queen Dua threatens nuclear deployment; environmental/famine consequences.
- "Red Spring": Antlian generals kill 145,890 people in detention/IDP camps.
- 1 Sep 2024: ICC investigation into Draco Archipelago since 4 Dec 2023; all relevant States party to Rome Statute and treaties.

Probable legal issues [2024 ISSUES]:

- [SELF-DEFENCE] Antlia response to Wolves of Rho: armed attack by non-state actors? attribution to Rho/Carina? necessity/proportionality of cross-border force.
- [IAC/NIAC] NIAC Antlia v Wolves? IAC Antlia v Rho after crossing border; IAC Rho/Carina v Antlia; parallel NIAC/IAC.
- [DRONE / AI] autonomous drones: distinction, precautions, foreseeability after known error, weapon review AP I art. 36, human control.
- [HUMAN SHIELDS / HOSTAGES] hostages dressed as fighters; taking hostages; attacker still must take feasible precautions if doubt.
- [MEDICAL] attacks on field hospitals, medical staff, UNICEF schools/hospitals; loss of protection only if used for harmful acts after warning.
- [NO QUARTER] order to "take no prisoners" violates AP I art. 40/custom; Rome Statute war crime.
- [POW] captured Rho soldiers forced into nuclear reactor: POW protection, no dangerous/unhealthy labour, no coercion, humane treatment.
- [DANGEROUS FORCES] nuclear power plant: AP I art. 56; no attacks if severe civilian losses; no using plant as shield/for howitzers.
- [NUCLEAR WEAPONS] threat of nuclear attack: ICJ Nuclear Weapons Advisory Opinion; distinction, proportionality, environment AP I arts. 35(3), 55.
- [OCCUPATION] Antlia in Western Rho: duties re food/water/medical supplies; prohibition of starvation/pillage/collective punishment.
- [REFUGEE] offshore containment, non-entry fiction, arbitrary/indefinite detention, unsafe boat returns, denial of asylum for illegal entry, non-refoulement, conditions forcing "voluntary" return.
- [STATELESSNESS] deprivation of nationality of Antlian activists after sentence; risk of statelessness.
- [ICC] Red Spring killings, detention camp massacres, attacks on civilians, no quarter, medical attacks, hostage-taking, starvation, dangerous forces, environment.

2.3. Bonus trend 2023 - The Situation in the Aesophia Region [AESOPHIA 2023]

Main topics [2023 ISSUES]:

- Duria v URF separatists: [NIAC], protests escalating, organized armed group, foreign fighters, hacktivist battalion.
- Duria uses expanding/dumdum bullets in policing: law enforcement vs IHL; prohibited bullets if armed conflict.
- AI drones kill unarmed civilians carrying medical supplies and destroy Bridge of Ahimsa (UNESCO enhanced protection): [DRONE], [CULTURAL PROPERTY], AP I art. 36, Hague 1954 Second Protocol.

- Antinomia invades Golden Apple: [IAC], [OCCUPATION], possible occupation of Durian territory.
- Dam destruction kills 20,000 civilians and 5,000 soldiers; flood, historic buildings: [DANGEROUS FORCES], AP I art. 56, proportionality.
- Cyber operations by Utopian hacktivists and Antinomian Cyber Command: [CYBER], attribution, civilian infrastructure, due diligence.
- Operation Damnatio Memoriae: detention of families, transfer of Utopian children, cultural destruction: [GENOCIDE?], [FORCED TRANSFER], [CULTURAL PROPERTY], [CHILDREN].
- Refugees in Noria/USP: language barriers in asylum procedure, ethnic discrimination, poor camps, no healthcare/education/legal aid, high seas pushbacks, family reunification denied due to public health.

Why this matters for 2025/2024: Ljubljana repeats questions about AI weapons, cyber, cultural heritage, displacement/refugees, detention, occupation, and ICC crimes.

3. Fundamenty prawa: dokument, data, miejsce, kiedy stosowac [DOCUMENT TABLE]

Dokument / case	Data i miejsce	Kiedy stosowac	Najwazniejsze hasla
UN Charter / Karta Narodow Zjednoczonych	26 Jun 1945, San Francisco	Jus ad bellum: legalnosc uzycia sily miedzy panstwami art. 2(4) zakaz sily; art. 51 self-defence; UNSC Chapter VII	
Geneva Conventions I-IV	12 Aug 1949, Geneva	IAC; Common Art. 3 also NIAC; ochrona rannych, rozbitkow, POW, cywilow CA2, CA3, GC I, GC II, GC III POW, GC IV civilians/occupation	
Additional Protocol I (AP I)	8 Jun 1977, Geneva	IAC; conduct of hostilities; civilians; methods/weapons arts. 35, 36, 48, 51, 52, 54, 55, 56, 57, 58, 75, 85	
Additional Protocol II (AP II)	8 Jun 1977, Geneva	NIAC o wyzszym progu: State v organized armed group controlling territory art. 1 threshold; arts. 4-6 humane treatment; arts. 7-12 medical; art. 13 civilians; art. 14 starvation; art. 16 cultural	
Additional Protocol III	8 Dec 2005, Geneva	dodatkowy znak ochronny red crystal / czerwony kryształ	
Hague Regulations	18 Oct 1907, Hague	means/methods, occupation art. 22 no unlimited choice; art. 23; art. 42 occupation; art. 43 public order; art. 46 property/family honour; art. 52 requisitions	
St Petersburg Declaration	11 Dec 1868, St Petersburg	zasada unnecessary suffering, jedyny uprawniony cel = oslabienie sil zbrojnych zakaz malokalibrowych pociskow eksplodujacych	
Hague Declaration on Expanding Bullets	29 Jul 1899, Hague	dumdum/expanding bullets zakaz kul rozszerzajacych sie	
Geneva Gas Protocol	17 Jun 1925, Geneva	gazy duszace/trujace, broń bakteriologiczna zakaz uzycia	
Biological Weapons Convention	10 Apr 1972, Moscow/London/Washington	biological/toxin weapons zakaz produkcji, skladowania, nabywania	
ENMOD Convention	18 May 1977, Geneva	environmental modification as weapon widespread/long-lasting/severe environmental modification	
CCW Convention	10 Oct 1980, Geneva	certain conventional weapons Protocol I fragments; Protocol II mines/booby traps; Protocol III incendiary; Protocol IV blinding lasers; Protocol V ERW	
Chemical Weapons Convention	13 Jan 1993, Paris	chemical weapons zakaz produkcji, skladowania, uzycia	
Ottawa Mine Ban Convention	4 Dec 1997, Ottawa	anti-personnel mines zakaz uzycia, produkcji, transferu, skladowania	
Convention on Cluster Munitions	30 May 2008, Dublin / Oslo signature 3 Dec 2008	cluster munitions zakaz use/develop/produce/acquire/stockpile/transfer; clearance/victim assistance	
Hague Cultural Property Convention	14 May 1954, Hague	cultural property in armed conflict respect/protect cultural property; military necessity exception narrow	
First Protocol to Hague 1954	14 May 1954, Hague	export/return of cultural property from occupied territory no removal/export; return	
Second Protocol to Hague 1954	26 Mar 1999, Hague	enhanced protection and criminal responsibility enhanced protection; serious violations art. 15	
UNESCO Declaration intentional destruction of cultural heritage	17 Oct 2003, Paris	deliberate cultural destruction soft law but persuasive	
Refugee Convention	28 Jul 1951, Geneva	refugee status, rights, non-refoulement art. 1A definition; art. 1F exclusion; art. 31 illegal entry; art. 32 expulsion; art. 33 non-refoulement	
1967 Protocol Relating to Status of Refugees	31 Jan 1967, New York	removes temporal/geographic limits refugee protection globally	
CAT - Convention against Torture	10 Dec 1984, New York	absolute non-refoulement to torture art. 3 no return to torture	

| ECHR | 4 Nov 1950, Rome | Europe, human rights; non-refoulement via art. 3 | art. 2 life; art. 3 torture/inhuman treatment absolute; art. 5 detention; art. 13 remedy |

| ICCPR | 16 Dec 1966, New York | human rights in conflict too | art. 6 life; art. 7 torture; art. 9 liberty; art. 14 fair trial |

| Convention on Rights of Child (CRC) | 20 Nov 1989, New York | children in conflict/refugee context | art. 22 refugee children; art. 38 armed conflict |

| Rome Statute of ICC | 17 Jul 1998, Rome | genocide, crimes against humanity, war crimes, aggression | arts. 5, 6, 7, 8, 25, 28, 30 |

| ICTY Tadic Jurisdiction Decision | 2 Oct 1995 | definition of armed conflict; NIAC tests | armed conflict exists whenever resort to armed force between States or protracted armed violence between governmental authorities and organized armed groups |

| ICJ Nicaragua v USA | 27 Jun 1986 | attribution, effective control, self-defence, armed attack | effective control for State responsibility; assistance to rebels |

| ICJ Nuclear Weapons Advisory Opinion | 8 Jul 1996 | nuclear threat/use | IHL applies to nuclear weapons; distinction/proportionality/environment |

4. Definicje i klasyfikacja konfliktu [CLASSIFICATION]

4.1. IHL / MPH - co to jest [IHL DEFINITION]

Według ujęcia ICRC/MKCK przytoczonego w PDF: international humanitarian law to normy traktatowe i zwyczajowe, które rozwiązują problemy humanitarne wynikające bezpośrednio z międzynarodowego i nie-międzynarodowego konfliktu zbrojnego; ograniczają metody i środki walki oraz chronią osoby i mienie zagrożone konfliktem.

Prawo genewskie [GENEVA LAW]: ochrona ofiar wojny - ranni, chorzy, rozbitkowie, jeńcy, cywile. Głównie Geneva Conventions 1949.

Prawo haskie [HAGUE LAW]: metody i środki walki, prawa i obowiązki walczących. Głównie Hague Regulations 1907. Obecnie podział jest dydaktyczny, bo AP I/II łączy oba nurty.

4.2. Armed conflict - test [ARMED CONFLICT]

Tadic formula: armed conflict exists whenever there is:

1. resort to armed force between States -> [IAC], or
2. protracted armed violence between governmental authorities and organized armed groups or between such groups within a State -> [NIAC].

Nie trzeba formalnej deklaracji wojny. Liczą się fakty. Państwo nie może uniknąć IHL mówiąc, że to "police action", "counter-terrorism" albo "special operation".

4.3. International Armed Conflict [IAC]

Rule [IAC RULE]: Common Article 2 Geneva Conventions: IAC exists in any declared war or any other armed conflict between two or more High Contracting Parties, even if one party does not recognize war. Applies also to occupation of all/part of territory even without armed resistance.

Apply when [IAC WHEN]:

- State A crosses border with armed forces into State B.
- State A attacks State B's armed forces or territory.
- State A occupies territory of State B.
- State A controls a non-state armed group so closely that acts are attributable/overall control may internationalize conflict (argue carefully).

2025 example: Ara v Rutania from 15 Jul 2025 at latest; possible earlier if Rutania's control over RPKAW is sufficient.

2024 example: Antlia v Rho after Antlia crosses into Western Rho; Rho/Carina v Antlia after Carina joins by request.

4.4. Non-International Armed Conflict [NIAC]

Common Article 3 [CA3]: minimum humanitarian protections in armed conflicts not of international character. Applies to each party, including non-state armed groups. Does not affect legal status of parties.

Tadic NIAC test [NIAC TEST]:

1. Intensity of violence: duration, weapons, casualties, displacement, territorial control, military operations, state response.
2. Organization of group: command structure, ability to recruit/train, discipline, operations, territorial control, public statements, logistics.

AP II threshold [AP II]: higher than CA3. Applies to conflict between State armed forces and dissident armed forces/organized armed groups under responsible command, exercising control over part of territory enabling sustained/concerted operations and implementation of AP II. Does not apply to riots, isolated/sporadic violence, internal disturbances.

2025 example: RPKAW controls Kolechia, has command under Volda, roadblocks, captures buildings, fights Ara; likely NIAC and possibly AP II if territorial control sufficient.

2024 example: Antlia v Wolves of Rho may be NIAC if Wolves sufficiently organized and violence protracted; but if Wolves attributable to Rho/Carina, IAC issues arise.

4.5. Mixed conflicts / parallel conflicts [MIXED CONFLICT]

A single factual situation can include:

- NIAC between State and non-state group.
- IAC between two States.
- Occupation by one State of another State's territory.
- Human rights/refugee law simultaneously.

Moot tip: do not force one label for whole case. Say: "The situation contains parallel legal relationships. The Ara-RPKAW relationship is NIAC; Ara-Rutania is IAC from X date; Transaltania is governed by occupation law once effective control is established."

4.6. Occupation [OCCUPATION]

Hague Regulations art. 42: territory is occupied when actually placed under authority of hostile army; occupation extends only to territory where such authority is established and can be exercised.

Effective control factors [EFFECTIVE CONTROL]: foreign forces present; local government unable to exercise authority; occupier can substitute authority; ability to enforce orders; duration not decisive.

Main duties [OCCUPATION DUTIES]:

- Hague art. 43: restore/ensure public order and civil life while respecting local laws unless absolutely prevented.
- GC IV: protect civilians, no forcible transfers/deportations, no collective punishment, no hostage-taking, fair trial guarantees.
- Food/medical supplies: ensure provision to population; allow relief schemes if inadequate.
- No pillage; no exploitation of resources except narrow usufruct/requisitions rules.
- ICRC/humanitarian access and detention visits.

2025 example: Ara in Transaltania after Daliaq capture and ceasefire; keeping buffer zone, denying humanitarian access, extracting lithium/cobalt, removing artifacts, disappearances.

2024 example: Antlia in Western Rho; nuclear plant, food/water denial, detention/IDP camps.

5. Core IHL principles [IHL PRINCIPLES]

5.1. Humanity / unnecessary suffering [HUMANITY]

Basic idea: war does not give unlimited freedom. Persons hors de combat and civilians must be protected; weapons/methods causing superfluous injury or unnecessary suffering are prohibited.

Sources: St Petersburg 1868; Hague Regulations art. 22/23; AP I art. 35.

Use in argument: "Military necessity never authorizes what IHL specifically prohibits."

5.2. Distinction [DISTINCTION]

AP I art. 48: parties must distinguish at all times between civilians and combatants and between civilian objects and military objectives; attacks only against military objectives.

Civilians [CIVILIANS]: all persons not members of armed forces; in doubt, considered civilian (AP I art. 50). Civilians protected unless and for such time as they directly participate in hostilities (AP I art. 51(3); customary in NIAC).

Military objectives [MILITARY OBJECTIVE]: AP I art. 52(2): objects which by nature, location, purpose or use make an effective contribution to military action and whose destruction/capture/neutralization offers a definite military advantage.

Indiscriminate attacks [INDISCRIMINATE]: AP I art. 51(4): not directed at a specific military objective; use means/methods that cannot be directed or effects cannot be limited; strike military objectives and civilians without distinction.

2025: old rockets with 500m accuracy fired into Centurion; cluster munitions in villages; cyber floodgate malware if unable to direct effects.

2024: AI drones kill hostages/civilians; attacks in hospitals/schools; nuclear threat against city.

5.3. Proportionality [PROPORTIONALITY]

Rule: prohibited to launch attack expected to cause incidental civilian death/injury or civilian object damage excessive in relation to concrete and direct military advantage anticipated. AP I art. 51(5)(b), art. 57(2)(b); customary in IAC and NIAC.

Factors from PDF: military importance of target, population density, probability of incidental damage, dangerous substances, available weapons and accuracy, defender's conduct, manner and timing of attack.

Moot formula:

1. Identify military objective and concrete/direct advantage.
2. Estimate expected civilian harm ex ante (not just actual harm).
3. Compare: excessive? If yes, unlawful even if target is military.
4. If new information arises, cancel/suspend attack.

5.4. Precautions in attack [PRECAUTIONS]

AP I art. 57: constant care; verify targets; choose means/methods minimizing civilian harm; refrain/cancel if unlawful or disproportionate; effective advance warning where circumstances permit.

AP I art. 58: precautions against effects of attacks: remove civilians from vicinity of military objectives where feasible; avoid locating military objectives within densely populated areas.

AI/drones [DRONE PRECAUTIONS]: high claimed accuracy does not remove duty to verify. If system already failed, continued deployment without adjustment strengthens breach.

5.5. Military necessity [MILITARY NECESSITY]

From PDF: modern military necessity means measures indispensable to achieve legitimate aims of conflict and lawful under IHL. It requires cumulatively:

1. real and direct necessity;
2. proportionality in choice of means/methods;
3. no violation of IHL norms/customs.

Key line: necessity is not a general excuse. It works only where IHL itself allows a narrow exception (mostly property/cultural property rules).

6. Status osob i detencja [STATUS / DETENTION]

6.1. Combatant and POW [COMBATANT] [POW]

Combatant [AP I arts. 43-44]: member of armed forces of a party to IAC except medical/religious personnel. Combatant has right to participate directly in hostilities and, if captured, POW status.

POW [GC III]: captured combatant in IAC. Protection starts once in enemy hands. POW must be treated humanely, protected from violence, intimidation, insults, public curiosity.

No POW status in NIAC: fighters can be detained/prosecuted under domestic law, but Common Article 3 and customary IHL require humane treatment and fair trial.

Parading captured soldiers [PUBLIC CURIOSITY]: violates GC III protection from insults/public curiosity; may be outrage upon personal dignity.

2025: captured Aranian soldiers paraded in Nirsk; captured RPKAW fighters in Centurion (NIAC detention/fair trial); captured Rutanian/Aranian soldiers after IAC (POW rules).

6.2. Hors de combat [HORS DE COMBAT]

Persons who surrender, are unconscious, wounded, detained, or otherwise unable to fight must not be attacked. Killing persons hors de combat is a war crime.

6.3. Humane treatment [HUMANE TREATMENT]

Common Article 3 prohibits at all times:

- violence to life and person, murder, mutilation, cruel treatment, torture;
- taking hostages;
- outrages upon personal dignity, humiliating/degrading treatment;
- sentences/executions without regularly constituted court and judicial guarantees.

AP I art. 75: fundamental guarantees in IAC/occupation; persuasive/customary also more broadly.

6.4. Children [CHILDREN]

AP I art. 77, AP II art. 4(3), CRC art. 38: special protection; no recruitment/use of children below minimum age; education/family unity. Forced transfer of children may be war crime/crime against humanity/genocide depending intent/context.

7. Ranni, chorzy, personel i obiekty medyczne [MEDICAL]

7.1. Wounded and sick [WOUNDED]

Must be respected/protected, collected and cared for without adverse distinction. No attacks, no pillage, no ill-treatment.

7.2. Medical personnel [MEDICAL PERSONNEL]

Medical and religious personnel enjoy special protection. They must not be attacked and, if retained, should continue medical functions. Punishing persons for providing medical care is prohibited.

7.3. Medical units/hospitals [HOSPITAL]

Medical units (fixed hospitals, field hospitals, medical transport, equipment) are protected. Protection ceases only if used, outside humanitarian function, to commit acts harmful to enemy, and normally only after warning with reasonable time limit remains unheeded.

Acts not causing loss of protection [NO LOSS]: medical staff carrying small arms for self-defence/patient defence; armed guard; presence of wounded combatants; small arms taken from wounded and not yet handed over.

2024: alleged Wolves in basements of hospitals/schools does not automatically remove protection; must verify, warn if feasible, proportionality. Firing at soldiers treated in field hospitals and medical staff is strong violation.

8. Obiekty cywilne, zywnosc, woda, elektrownie, srodowisko [CIVILIAN OBJECTS]

8.1. Civilian objects [CIVILIAN OBJECT]

All objects not military objectives. In doubt, presume civilian if normally dedicated to civilian purposes (AP I art. 52(3)).

Examples: homes, schools, hospitals, religious/cultural buildings, markets, civilian infrastructure unless by use/purpose etc. they make effective contribution to military action.

8.2. Objects indispensable to survival [STARVATION]

AP I art. 54 / AP II art. 14: starvation of civilians as method of warfare prohibited. Do not attack/destroy/remove/render useless foodstuffs, agricultural areas, crops, livestock, drinking water installations, irrigation works if for purpose of denying sustenance to civilians.

2025: Ara withholds food in Transaltania; Kolechia camps suffer starvation; humanitarian access denied.

2024: Antlia refuses food/water/hygiene/electricity to Western Rho population.

8.3. Dangerous forces [DANGEROUS FORCES]

AP I art. 56 / AP II art. 15: dams, dykes, nuclear electrical generating stations should not be attacked if attack may release dangerous forces and cause severe civilian losses, even if military objectives, except narrow conditions.

2025: hydroelectric plant cyber malware could open floodgates; Centurion plant vulnerabilities.

2024: Rho nuclear power plant used for howitzers; virus to destabilize core; threat of meltdown. Both attacking and using protected dangerous-force installations for military purposes are legally explosive issues.

8.4. Environment [ENVIRONMENT]

AP I art. 35(3), art. 55: prohibited methods/means intended or expected to cause widespread, long-term and severe damage to natural environment. ENMOD covers hostile environmental modification. Nuclear threat/use must also satisfy IHL.

2024: nuclear attack on Polaris causing radiation, famine, uninhabitable area, UNESCO natural heritage.

9. Dobra kultura [CULTURAL PROPERTY]

9.1. Definition [CULTURAL PROPERTY]

Hague 1954 art. 1: movable/immovable property of great importance to cultural heritage of every people: monuments, archaeological sites, works of art, manuscripts, books, museums, libraries, archives, refuges.

9.2. Protection levels [CULTURAL PROTECTION]

1. General protection - respect and safeguard.
2. Special protection - limited categories under Hague 1954.
3. Enhanced protection - Second Protocol 1999: greatest importance for humanity, protected by adequate domestic measures, not used for military purposes.

9.3. Main prohibitions [CULTURAL CRIMES]

- No directing attack against cultural property unless narrow military necessity.
- No using cultural property or immediate surroundings to support military action.
- No theft, pillage, misappropriation, vandalism.
- No export/removal from occupied territory; return if removed.

2025: pagan artifacts from Daliaq temples transported to Ara proper = possible unlawful removal/pillage of cultural property from occupied territory.

2024: UNESCO natural site near Polaris and cultural/natural heritage threatened by nuclear missile; less classic Hague 1954 if natural heritage, but environment/proportionality plus UNESCO arguments.

2023: Bridge of Ahimsa on UNESCO World Heritage List under enhanced protection destroyed by AI drone.

10. Metody i srodki walki [WEAPONS / METHODS]

10.1. General rule [MEANS METHODS]

Hague art. 22 / AP I art. 35: parties do not have unlimited choice of means and methods. Prohibited to cause superfluous injury/unnecessary suffering; prohibited widespread, long-term, severe environmental damage.

10.2. No quarter [NO QUARTER]

Order that there shall be no survivors / no prisoners / "take no prisoners" is prohibited. AP I art. 40; customary IHL; Rome Statute war crime.

2024: General Howard's "take no prisoners" order.

10.3. Perfidy and misuse of emblems [PERFIDY]

Perfidy: killing/injuring/capturing by inviting enemy confidence in IHL protection with intent to betray it (e.g., feigning surrender, misuse of red cross/UN flags). Misuse of red cross/red crescent/red crystal in conflict can be war crime.

10.4. Human shields and hostages [HUMAN SHIELDS] [HOSTAGES]

Taking hostages is prohibited. Using civilians to shield military objectives is prohibited. However, enemy use of human shields does not cancel attacker's obligations of distinction, precautions, and proportionality.

2024: Wolves dress tied hostages as fighters; Antlia still had duty to verify if doubt and review AI targeting.

10.5. Cluster munitions [CLUSTER MUNITIONS]

Convention on Cluster Munitions 2008 prohibits use, development, production, acquisition, stockpiling, retention, transfer. Even aside from treaty, cluster munitions in populated areas raise distinction/proportionality and unexploded ordnance issues.

2025: Ara uses cluster munitions behind Kolehian front lines and villages become uninhabitable until demining.

10.6. Expanding bullets / rubber bullets [EXPANDING BULLETS]

Hague Declaration 1899 prohibits expanding/flattening bullets in international armed conflict. In law enforcement, "less lethal" weapons are governed by human rights/law enforcement necessity-proportionality; if used in armed conflict context, IHL issues arise.

2025: rubber bullets killed protestors - initially law enforcement/human rights analysis unless NIAC threshold already met.

2023: dum-dum bullets allowed by domestic police law; must challenge under international law if armed conflict or excessive force if law enforcement.

10.7. AI / autonomous weapons / drones [DRONE] [AI WEAPONS]

No specific universal treaty banning AI weapons, so apply existing IHL:

- AP I art. 36 weapons review for new weapons.
- Distinction: can system reliably identify lawful targets in context?
- Proportionality: can expected incidental harm be assessed?
- Precautions: human commanders must verify/cancel; cannot outsource legal judgment blindly.
- Accountability: operator/commander/state responsibility remains.

Prosecution argument: known limitations, prior failure, civilian environment, no meaningful human control -> breach of precautions and possibly reckless/knowing attack.

Defence argument: ex ante 99.5/99.75% accuracy, target appeared military, enemy perfidy/human shields, feasible precautions taken, no intent to target civilians.

10.8. Cyber operations [CYBER]

Apply IHL if cyber operation has nexus to armed conflict or itself contributes to conflict.

Issues:

- Is cyber operation an "attack"? Tallinn-style approach: operation reasonably expected to cause death, injury, physical damage, or sometimes loss of functionality.
- Distinction: civilian infrastructure/banks/air traffic/hydroelectric plant.
- Proportionality and precautions.
- Attribution to State: organs, effective control, instructions/direction/control, due diligence arguments.
- Jus ad bellum: severe cyber operation may be use of force/armed attack if scale/effects comparable.

2025: Rutania alleged malicious actors in Ara computers; possible code in hydroelectric plant systems; attribution disputed.

2024: Rho Special Forces virus in nuclear plant.

2023: hackers in USP attack Antinomia; Antinomia virus spreads to USP banking/payment.

11. Uchodźcy, azyl, non-refoulement [REFUGEE]

11.1. Refugee definition [REFUGEE DEFINITION]

1951 Refugee Convention art. 1A(2): refugee = outside country of nationality/residence; owing to well-founded fear of persecution for race, religion, nationality, membership of particular social group, political opinion; unable/unwilling to avail protection of that country.

War refugees: people fleeing armed conflict may qualify where violence is linked to Convention grounds (ethnicity, political opinion, nationality, etc.) or under regional/subsidiary protection standards. In moot, also argue human rights non-refoulement even if Convention refugee status disputed.

11.2. Non-refoulement [NON-REFOULEMENT]

Refugee Convention art. 33(1): no expulsion/return "in any manner whatsoever" to territories where life or freedom threatened on Convention grounds.

Exceptions art. 33(2): danger to security or convicted particularly serious crime + danger to community. But exceptions do not allow return to torture/inhuman treatment under CAT art. 3/ECHR art. 3/ICCPR art. 7, which are absolute.

Pushbacks/interception at sea: non-refoulement applies wherever State exercises jurisdiction/effective control, including interception by navy/coast guard, transfer arrangements, offshore centers.

No legal fiction of non-entry: if State controls persons, it owes procedural and substantive protections.

11.3. Access to asylum procedure [ASYLUM PROCEDURE]

Minimum points:

- individual assessment;
- interpreter/language access;
- legal assistance/effective remedy;
- no discrimination;
- special needs: children, women, families, disabilities, trauma, GBV survivors;
- detention only lawful, necessary, proportionate, non-arbitrary, reviewable.

2025 Icaria: priority for children/women/families is positive, but inadequate vouchers, reporting every two days, arrests for speech, and systematic returns are problematic.

2024 Carina/Orion: indefinite detention of all arrivals, 95% returns on unsafe boats, denial of asylum to "illegal immigrants", out-of-service boats causing drowning -> severe non-refoulement and right-to-life issues.

2023 Noria/USP: procedures only in Norian language, discriminatory temporary protection only for ethnic Norians, poor camps, high seas pushbacks, family reunification denial.

11.4. Illegal entry [ILLEGAL ENTRY]

Refugee Convention art. 31: do not penalize refugees for illegal entry/presence if they come directly from territory of threat, present without delay, show good cause. In armed conflict, irregular routes and smugglers often do not defeat protection.

11.5. Exclusion / terrorism suspects [EXCLUSION]

Refugee Convention art. 1F: exclude persons with serious reasons for considering they committed war crime/crime against humanity/serious non-political crime/acts contrary to UN purposes.

Moot distinction: exclusion requires individual assessment; cannot label all people from Kolechia/RPK ethnicity as terrorists. Security screening allowed, collective pushback not.

11.6. Neutrality and refugees [NEUTRALITY]

Neutrality does not permit violation of non-refoulement. A neutral State may regulate political activity and security, but must respect human rights, refugee law, and no collective penalties.

2025 Icaria: criminalizing open support for any party may be defended as neutrality measure, but arrests and subsequent return to danger must be analyzed under freedom of expression, detention, non-refoulement.

12. Jus ad bellum: uzycie sily i samoobrona [USE OF FORCE]

12.1. UN Charter art. 2(4) [USE OF FORCE]

States must refrain from threat or use of force against territorial integrity or political independence of any State. This is separate from IHL. Even an illegal war must be fought according to IHL.

12.2. Self-defence art. 51 [SELF-DEFENCE]

Requires:

1. armed attack;
2. attribution to State or accepted doctrine of self-defence against non-state actors if host State unwilling/unable (controversial);
3. necessity;
4. proportionality;
5. report to UNSC.

2025: Ara says invasion of Transaltania is response to Rutanian hybrid war/supply. Weak points: attribution of cyber and RPKAW support; whether cyber/proxy support amounts to armed attack; necessity of territorial invasion; proportionality.

2024: Antlia says Wolves are terrorists and Rho incapable. Weak points: attack by non-state group, Rho's involvement, scale, necessity/proportionality of invasion and civilian harm.

12.3. Assistance by third State [COLLECTIVE SELF-DEFENCE]

Third State may assist if victim State requests and conditions of self-defence are met. Consent by government can make assistance lawful under jus ad bellum, but all forces remain bound by IHL.

2024: Carina assists Rho after parliamentary approval/request; still responsible for General Howard's orders.

2025: Obristan treaty has collective self-defence clause; clause alone does not override UN Charter conditions.

13. State responsibility and attribution [STATE RESPONSIBILITY]

13.1. Attribution to State [ATTRIBUTION]

Useful tests:

- State organs: armed forces, police, official cyber command -> attributable.

- Instructions/direction/control: private actors or armed groups acting under State instructions/control.
- Effective control (ICJ Nicaragua): State controls specific operation.
- Overall control (ICTY Tadic): for classification/internationalization, lower threshold in some IHL contexts; funding/training/equipping plus role in organization/planning may suffice.

2025: Rutania funds/trains RPKAW, volunteers, weapons, officer academy. Argue both sides: effective control over specific attacks? overall control over RPKAW? propaganda/cyber via malicious actors?

2024: Wolves leader studied/worked in Carina; Carina threats to Rho; affiliations may be insufficient alone; need control over operations.

13.2. Due diligence [DUE DILIGENCE]

Even absent attribution, State may breach obligations if knowingly allows territory to be used for serious harm and fails reasonable measures.

14. ICC / International Criminal Law [ICC]

14.1. ICC jurisdiction [ICC JURISDICTION]

Check:

- Subject-matter: genocide, crimes against humanity, war crimes, aggression (Rome Statute art. 5).
- Temporal: after entry into force / investigation date in case.
- Territorial/national: crime on territory of State Party or by national of State Party, or UNSC referral, or declaration.
- Complementarity: ICC if State unwilling/unable genuinely to investigate/prosecute.
- Gravity: sufficient gravity.

In 2024/2025 case studies, all relevant States are Rome Statute parties and ICC Pre-Trial Chamber authorized investigation.

14.2. War crimes [WAR CRIMES]

Rome Statute art. 8 - common examples for moot:

- wilful killing/murder;
- torture/inhuman/cruel treatment;
- wilfully causing great suffering;
- extensive destruction/appropriation not justified by military necessity;
- compelling POW/protected person to serve in hostile forces;
- denying fair trial;
- unlawful deportation/transfer/confinement;
- taking hostages;
- intentionally directing attacks against civilians;
- intentionally directing attacks against civilian objects;
- intentionally directing attacks against humanitarian/peacekeeping personnel;
- intentionally launching disproportionate attack;
- attacking undefended towns/villages;
- killing/wounding surrendered/hors de combat;
- declaring no quarter;

- pillage;
- poison/poisoned weapons, prohibited weapons where applicable;
- outrages upon personal dignity;
- rape/sexual violence;
- starvation of civilians;
- attacks on buildings dedicated to religion, education, art, science, charity, historic monuments, hospitals, where not military objectives;
- conscripting/enlisting/using children under 15.

14.3. Crimes against humanity [CAH]

Rome Statute art. 7: listed acts committed as part of widespread or systematic attack directed against any civilian population, with knowledge of attack.

Acts: murder, extermination, deportation/forcible transfer, imprisonment, torture, rape/sexual violence, persecution, enforced disappearance, apartheid, other inhumane acts.

2025: disappearances in Transaltania; systematic returns to danger? killings/denial of food if widespread/systematic.

2024: Red Spring camp killings of 145,890; likely widespread/systematic attack on civilian population.

2023: Operation Damnatio Memoriae, child transfers, cultural persecution.

14.4. Genocide [GENOCIDE]

Rome Statute art. 6 / Genocide Convention: intent to destroy, in whole or in part, national, ethnical, racial, or religious group as such, by killing, serious harm, destructive conditions, preventing births, transferring children.

Moot caution: high specific intent. Cultural destruction alone is not genocide under strict definition, but can evidence intent with other acts.

14.5. Individual modes [INDIVIDUAL RESPONSIBILITY]

Rome Statute art. 25: direct perpetration, co-perpetration, ordering, soliciting/inducing, aiding/abetting, contribution to group crime.

Mens rea art. 30: intent and knowledge unless otherwise provided.

Command responsibility art. 28 [COMMAND RESPONSIBILITY]: commander/superior responsible if knew or should have known / consciously disregarded information, had effective command/control, failed to prevent/repress or submit for investigation.

2024: General Howard orders no prisoners and pardons violations; Antlian generals Red Spring; Queen/State leaders for nuclear threat? command/control and mens rea.

2025: Kastenja/Drax/Volda/Wens depending orders and control; Aranian commanders in Transaltania; Rutanian missile salvos.

15. Humanitarian access and ICRC/MKCK [ICRC]

15.1. ICRC role [ICRC ROLE]

From PDF: ICRC is neutral, independent humanitarian institution; protects and assists civilian and military victims of armed conflicts; promotes and develops IHL; may act as neutral intermediary.

Functions:

- visit POWs/internees/detainees;
- Central Tracing Agency / information bureau;
- family links, missing persons;
- humanitarian initiatives;
- confidential reports to detaining authorities;
- offer services in IAC, NIAC, and internal disturbances. Offer of services is not intervention in internal affairs.

15.2. Humanitarian relief [HUMANITARIAN ACCESS]

Parties must allow and facilitate impartial humanitarian relief subject to right of control; arbitrary denial can violate IHL. In occupation, if population inadequately supplied, occupier must agree to relief schemes and facilitate them.

2025: Ara says no humanitarian organization needed in Transaltania; denies access in Kolechia; hospitals lack medicines. Strong issue.

2024: Antlia/Rho refused ICRC access except transfer of 3 soldiers; detention camps and nuclear plant issues.

16. Gotowe argumenty do najczestszych problemow [ARGUMENT BANK]

16.1. Czy to NIAC? [NIAC ARGUMENT]

For NIAC:

"The violence is not mere internal disturbance. It is protracted and intense: armed group captured territory/infrastructure, State deployed armed forces, artillery/airstrikes occurred, casualties are high, frontlines exist, detainees are held. The group is organized: it has named leadership, command structure, weapons, recruitment, ability to conduct coordinated operations and control territory. Therefore Common Article 3 applies; AP II applies if the group controls enough territory to conduct sustained operations and implement the Protocol."

Against AP II:

"Even if CA3 applies, AP II requires a higher threshold. The group must be under responsible command and exercise such territorial control as to carry out sustained and concerted operations and implement AP II. If control is fragmented/temporary, AP II may not apply, but customary IHL and CA3 still do."

16.2. Czy konflikt zostal umiędzynarodowiony? [INTERNATIONALIZATION ARGUMENT]

For:

"The non-state armed group is not merely receiving sympathy. It receives funding, weapons, training, personnel and operational support from the State. If the State has overall control over the group, the conflict should be treated as internationalized at least for relations involving that State."

Against:

"Assistance, financing and political support are not enough for attribution of each operation. Under a stricter effective control test, it must be shown that the State directed or controlled the specific conduct. On the facts, public denials and lack of operational orders weaken attribution."

16.3. Attack with civilian casualties [ATTACK ARGUMENT]

Prosecution / violation:

"Even if the target had military value, the attack was unlawful because the means used could not be directed with sufficient precision in the circumstances, the expected civilian harm was excessive, and feasible precautions were not taken. The attacker had to verify the target and cancel or suspend once doubt arose."

Defence:

"The legality of an attack must be assessed ex ante, not with hindsight. The commander identified a military objective, anticipated concrete and direct military advantage, selected the most precise available means, and civilian harm was not expected to be excessive based on information reasonably available at the time."

16.4. AI drone error [AI ARGUMENT]

Violation:

"A statistical accuracy claim cannot replace legal judgment. The system failed to distinguish hostages/civilians in a complex environment. Continuing to deploy it after known failure breached verification and precaution duties and made civilian harm foreseeable."

Defence:

"IHL does not prohibit autonomous systems per se. The system had undergone review, was designed to target military objectives, had a very high accuracy rate, and the enemy manipulated appearances by disguising hostages. The relevant question is what was reasonably foreseeable."

16.5. Non-refoulement / pushback [PUSHBACK ARGUMENT]

For asylum seeker:

"The person is under the intercepting State's effective control, so non-refoulement applies. Collective return without individual assessment, especially to an active conflict zone or to authorities likely to detain/interrogate alleged terrorists, violates the Refugee Convention and human rights law. Security concerns justify screening, not blanket return."

For State:

"The State faces genuine national security and capacity concerns. It may conduct identity/security screening, prioritize vulnerable persons, and detain where lawful, necessary and proportionate. However, the State still needs individual assessment and cannot return anyone to torture, persecution, or inhuman treatment."

16.6. Occupation resource extraction [RESOURCE / PILLAGE]

Violation:

"Once effective control exists, the occupying power is administrator, not sovereign. It may not exploit natural resources for its own war costs or economy. Extracting lithium/cobalt from occupied Transaltania risks pillage and unlawful appropriation not justified by military necessity."

Defence:

"If extraction is limited, temporary, necessary for administration/security of the occupied territory, and benefits the local population, the occupier may argue usufruct/requisition principles. The facts must show strict necessity and accounting."

16.7. Cultural artifacts [CULTURAL PROPERTY ARGUMENT]

"Cultural property is protected regardless of origin or ownership. Removing pagan artifacts from occupied Daliaq temples to Ara proper is not safeguarding if done without necessity, consent, inventory, and plan of return. It may constitute unlawful removal, pillage, and a war crime if linked to armed conflict."

16.8. Starvation/humanitarian access [STARVATION ARGUMENT]

"Food scarcity is not merely collateral hardship if parties withhold supplies, block escape, deny relief, or destroy objects indispensable to survival. Starvation of civilians as a method of warfare is prohibited in both IAC and NIAC; arbitrary denial of impartial humanitarian relief strengthens the violation."

17. Najszybsza mapa przepisow po haslach [CTRL+F INDEX]

- [IAC] - Common Article 2 GC; AP I; any force between States; occupation.
- [NIAC] - Common Article 3; AP II art. 1; Tadic intensity + organization.
- [OCCUPATION] - Hague art. 42/43; GC IV; effective control.
- [DISTINCTION] - AP I art. 48, 51, 52.
- [PROPORTIONALITY] - AP I art. 51(5)(b), 57(2)(b); customary.
- [PRECAUTIONS] - AP I arts. 57-58.
- [CIVILIAN] - AP I art. 50; civilians protected unless DPH.
- [MILITARY OBJECTIVE] - AP I art. 52(2).
- [STARVATION] - AP I art. 54; AP II art. 14; Rome Statute art. 8.
- [DANGEROUS FORCES] - AP I art. 56; AP II art. 15.
- [ENVIRONMENT] - AP I arts. 35(3), 55; ENMOD; Nuclear Weapons AO.
- [MEDICAL] - GC I/II/IV; AP I arts. 8, 12-15; AP II arts. 7-12.
- [POW] - GC III; AP I arts. 43-44; public curiosity; humane treatment.
- [HORS DE COMBAT] - no attack on surrendered/wounded/detained.
- [NO QUARTER] - AP I art. 40; Rome Statute war crime.
- [PERFIDY] - AP I art. 37; misuse of protective emblems.
- [CLUSTER MUNITIONS] - Convention on Cluster Munitions 2008; distinction/proportionality.
- [DRONE] / [AI WEAPONS] - AP I art. 36 weapons review; distinction/proportionality/precautions.
- [CYBER] - attack/effects, attribution, distinction, proportionality, due diligence.
- [CULTURAL PROPERTY] - Hague 1954; First/Second Protocols; AP I art. 53; AP II art. 16; Rome Statute.
- [REFUGEE] - 1951 Refugee Convention art. 1A; 1967 Protocol.
- [NON-REFOULEMENT] - Refugee Convention art. 33; CAT art. 3; ECHR art. 3.
- [ASYLUM PROCEDURE] - individual assessment, interpreter, remedy, no discrimination.
- [ILLEGAL ENTRY] - Refugee Convention art. 31.
- [EXCLUSION] - Refugee Convention art. 1F.
- [USE OF FORCE] - UN Charter art. 2(4).
- [SELF-DEFENCE] - UN Charter art. 51; necessity/proportionality/UNSC report.
- [ATTRIBUTION] - Nicaragua effective control; Tadic overall control.
- [ICC] - Rome Statute arts. 5-8, 25, 28, 30.
- [WAR CRIMES] - Rome Statute art. 8.
- [CAH] - Rome Statute art. 7 crimes against humanity.
- [GENOCIDE] - Rome Statute art. 6; specific intent.
- [ICRC] - neutral intermediary, visits detainees, humanitarian access, tracing.

18. Last-minute speaking checklist [LAST MINUTE]

Before answering a judge, ask silently:

1. Is this jus ad bellum (legality of force) or jus in bello/IHL (conduct once conflict exists)? Do not mix.
2. What is the classification at that time and between those parties?
3. Is the person/object protected? Did protection cease? Was there doubt?
4. Was there a military objective and concrete/direct advantage?
5. Were incidental civilian harms expected and excessive?
6. Were feasible precautions taken?

7. If refugee/asylum: is there individual assessment and non-refoulement risk?
8. If ICC: what crime, what contextual elements, what mode of liability, what mens rea?
9. Give both sides if asked: "The strongest argument for State X is..., however..."

Universal safe answer:

"The legality depends on the classification of the conflict and the facts reasonably available at the time. However, even in the strongest case for military necessity, IHL does not permit attacks on civilians, starvation, torture, hostage-taking, denial of fundamental guarantees, or refoulement to a real risk of persecution or inhuman treatment."